

Habeeb Shah v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 6 December 2017 · Writ - C No. 58150 of 2017 · **Writ dismissed; petitioner relegated to clause 6.5.**

HEADNOTE

A writ against a tehsildar recovery citation founded on a disputed electricity bill and arrears is not entertained where clause 6.5 of the U.P. Electricity Supply Code, 2005 affords an effective remedy; the consumer is left to that route.

FACTUAL SUMMARY

Habeeb Shah challenged a recovery citation dated 18 November 2017 issued by the Tehsildar, Tehsil Sirsaganj, District Firozabad. The demand related to a disputed electricity bill and arrears claimed by the Executive Engineer, Dakshinanchal Vidhut Vitran Khand, Shikohabad (later corrected to Sirsaganj). He invoked writ jurisdiction against the citation. Counsel entered appearance for respondent nos. 3 to 5. A later miscellaneous application corrected the engineer's office designation in the 6 December 2017 order.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

alternative remedy for disputed bill and arrears

HOLDING

Where the grievance is a disputed electricity bill and arrears underlying a tehsildar recovery citation, clause 6.5 of the U.P. Electricity Supply Code, 2005 is an effective remedy; the High Court will not interfere in writ jurisdiction and the consumer may pursue that objection. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DISPUTED BILL, ARREARS, OR THE RECOVERY CITATION ON MERITS

¶ 3-4